

Hari Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 October 2023 · 2023:AHC:201226-DB · WRIT - C No. 36072 of 2023 · **Writ disposed; 6.14 instalment application to be considered; no disconnection till payment fixed.**

HEADNOTE

A consumer facing recovery of electricity dues who offers to pay in instalments is to move the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005. The application is to be considered in accordance with that clause, and the connection is not to be disconnected until the payment so fixed is made.

FACTUAL SUMMARY

Hari Singh filed a writ in the Allahabad High Court against recovery of electricity dues of Rs.2,06,260. Counsel for the petitioner stated that he was ready to pay those dues in easy instalments. Counsel for the Electricity Department submitted that if the petitioner wished to pay the amount due in instalments, he could approach the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005. The petition was heard by a Division Bench and decided on 17 October 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments for electricity dues

HOLDING

If the petitioner approaches the Executive Engineer, Hamirpur within 15 days and applies under clause 6.14 of the Electricity Supply Code, 2005, the application shall be considered in accordance with clause 6.14 within the next 15 days. The connection shall not be disconnected until the payment as fixed is made. The writ is disposed of on that direction. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer who offers to clear electricity dues in instalments is directed to apply to the Executive Engineer under clause 6.14, and that application is to be considered in accordance with the clause, with disconnection withheld until the payment fixed under it is made. ¶ 1

clause-6.14-instalments-on-accepted-dues The petitioner did not press a challenge to the demand of Rs.2,06,260 and offered to pay it in instalments, so the Court treated clause 6.14 as the route for scheduling payment of the dues. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS.2,06,260 WAS CORRECTLY RAISED OR RECOVERABLE

The petitioner offered to pay the dues and the Court did not examine the assessment. ¶ 1

NOT DECIDED — WHETHER INSTALMENTS MUST BE GRANTED, AND IN WHAT NUMBER OR AMOUNT

Left to the Executive Engineer, Hamirpur, on a clause 6.14 application. ¶ 1